



ETHICAL OBLIGATIONS: STANDARD 1.05

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» Ethical Obligations: Standard 1.05

These are resources for parents.

Forensic psychology in the family courts is a failed experiment in service delivery to a vulnerable population, and the practice of forensic custody evaluations needs to stop.

NY Blue Ribbon Commission

 [NY Blue Ribbon Commission on Forensic Custody Evaluations](https://ocfs.ny.gov/programs/cwcs/assets/docs/Blue-Ribbon-Commission-Report-2022.pdf)

[\(https://ocfs.ny.gov/programs/cwcs/assets/docs/Blue-Ribbon-Commission-Report-2022.pdf\)](https://ocfs.ny.gov/programs/cwcs/assets/docs/Blue-Ribbon-Commission-Report-2022.pdf)

The New York Blue Ribbon Commission on Forensic Custody Evaluations found the practice of forensic custody evaluations to be “harmful to children” and lacking scientific or legal value. The NY Blue Ribbon Commission voted 11-to-9 to recommend the elimination of forensic custody evaluations in the family courts.

From NY Blue Ribbon Commission: “Ultimately, the Commission members agree that some New York judges order forensic evaluations too frequently and often place undue reliance upon them. Judges order forensic evaluations to provide relevant information regarding the “best interest of the child(ren),” and some go far beyond an assessment of whether either party has a mental health condition that has affected their parental behavior. In their analysis, evaluators may rely on principles and methodologies of dubious validity. In some custody cases, because of lack of evidence or the inability of parties to pay for expensive challenges of an evaluation, defective reports can thus escape meaningful scrutiny and are often accepted by the court, with potentially disastrous consequences for the parents and children... As it currently exists, the process is fraught with bias, inequity, and a statewide lack of standards, and allows for discrimination and violations of due process.”

From NY Blue Ribbon Commission: “By an 11-9 margin, a majority of Commission members favor elimination of forensic custody evaluations entirely, arguing that these reports are biased and harmful to children and lack scientific or legal value. At worst, evaluations can be dangerous, particularly in situations of domestic violence or child abuse – there have been several cases of children in New York who were murdered by a parent who received custody following an evaluation. These members reached the conclusion that the practice is beyond reform and that no amount of training for courts, forensic evaluators and/or other court personnel will successfully fix the bias, inequity and conflict of interest issues that exist within the system.”

Standard 1.04 & 1.05 Obligations

Standards 1.04 and 1.05 of the ethics code for the American Psychological Association govern the required response of all psychologists when they encounter potential ethical violations by other psychologists. Standards 1.04 and 1.05 of the APA ethics code are active surrounding the rampant and unchecked violations to ethical Standards 2.01 Boundaries of Competence and 2.04 Bases for Scientific and Professional Judgments in forensic psychology.

1.04 Informal Resolution of Ethical Violations

When psychologists believe that there may have been an ethical violation by another psychologist, they attempt to resolve the issue by bringing it to the attention of that individual, if an informal resolution appears appropriate and the intervention does not violate any confidentiality rights that may be involved.

1.05 Reporting Ethical Violations

If an apparent ethical violation has substantially harmed or is likely to substantially harm a person or organization and is not appropriate for informal resolution under Standard 1.04, Informal Resolution of Ethical Violations, or is not resolved properly in that fashion, psychologists take further action appropriate to the situation. Such action might include referral to state or national committees on professional ethics, to state licensing boards, or to the appropriate institutional authorities.

There has been substantial harm, and there is likely to be substantial harm to children and parents in the family courts because of the violations of Standards 2.01 and 2.04 of the APA ethics code by forensic psychologists. The ethical violations in forensic psychology are systemic throughout the practice and are not appropriate for informal resolution under Standard 1.04.

What further action is appropriate to the situation in the family courts?

AFCC 2017 Powerpoint – Childress & Pruter

These are the Powerpoint slides from the 2017 presentation by Dr. Childress and Dorcy Pruter to the national convention of the Association of Family and Conciliation Courts

🔗 [AFCC Powerpoint 2017 – Childress Powerpoint \(https://drcachildress-consulting.com/wp-content/uploads/2023/07/AFCC-Powerpoint-2017-Childress-Powerpoint-cc.pdf\)](https://drcachildress-consulting.com/wp-content/uploads/2023/07/AFCC-Powerpoint-2017-Childress-Powerpoint-cc.pdf)

🔗 [AFCC Powerpoint 2017 – Pruter Powerpoint \(https://drcachildress-consulting.com/wp-content/uploads/2023/07/AFCC-Powerpoint-2017-Pruter-Powerpoint-cc.pdf\)](https://drcachildress-consulting.com/wp-content/uploads/2023/07/AFCC-Powerpoint-2017-Pruter-Powerpoint-cc.pdf)

In this presentation to the national convention of the AFCC, Dr. Childress described the pathology followed by slides on Professional Competence that directly informed them of their obligations, pursuant to the ethical obligations of Dr. Childress under Standard 1.05 of the APA ethics code.

The AFCC was informed of the pathology and their ethical obligations for competence pursuant to the ethical obligations required of Dr. Childress by Standard 1.05 of the APA ethics code.

The continued ethical violations of Standards 2.01 and 2.04 of the APA ethics code by forensic psychologists were not properly resolved through direct presentation to the national convention of the Association of Family and Conciliation Courts (AFCC).

What further action is appropriate to the situation in the family courts?

Petition to the APA

In 2018, Dr. Childress wrote a Petition to the American Psychological Association that was signed by 20,000 parents describing the ethical concerns in forensic psychology. Dr. Childress along with two parent advocates, Wendy Perry and Rod McCall, hand-delivered the Petition to the APA to the corporate offices of the APA in Washington, D.C.

🔗 [Petition to the APA \(https://www.amazon.com/Petition-American-Psychological-Association/dp/0996114599\)](https://www.amazon.com/Petition-American-Psychological-Association/dp/0996114599)

The parent advocates were informed by the APA that the Petition to the APA had been given to a committee, but the APA refused to disclose the names of the committee members. No response has ever been provided by the APA to the Petition to the APA signed by 20,000 parents informing them of the widespread ethical violations in forensic psychology.

The American Psychological Association was informed about the ethical violations in forensic psychology pursuant to the ethical obligations required of Dr. Childress by Standard 1.05 of the APA ethics code.

The continued ethical violations of Standards 2.01 and 2.04 of the APA ethics code by forensic psychologists were not properly resolved through directly informing the APA through a Petition to the APA signed by 20,000 parents.

What further action is appropriate to the situation in the family courts?

Organizational Submissions

Dr. Childress has made multiple submissions to governmental oversight organizations and organizations informing them of the problematic issues in the family courts and its solution, i.e., a return of clinical psychology to the family courts and the application of the established scientific and professional knowledge of the discipline.

Consultation to Family Justice Council (UK)

The Family Justice Council in the United Kingdom invited public consultation on their Draft Guidance on Responding to Allegations of Alienating Behaviour. This is my consultation response submitted to the Family Justice Council.



 [Childress Response to Family Justice Council Draft Guidelines -Part 1 \(https://drcachildress-consulting.com/wp-content/uploads/2023/10/Childress-Response-to-Family-Justic-Council-Draft-Guidelines-Part-1.pdf\)](https://drcachildress-consulting.com/wp-content/uploads/2023/10/Childress-Response-to-Family-Justic-Council-Draft-Guidelines-Part-1.pdf)

 [Childress Response to Family Justice Council Draft Guidelines -Part 2 \(https://drcachildress-consulting.com/wp-content/uploads/2023/10/Childress-Response-to-Family-Justic-Council-Draft-Guidelines-Part-2.pdf\)](https://drcachildress-consulting.com/wp-content/uploads/2023/10/Childress-Response-to-Family-Justic-Council-Draft-Guidelines-Part-2.pdf)

Australian Amicus Brief

This is an amicus brief I offered in Australia surrounding pending legislation considerations that describes the pathology of concern in the family courts.



 [Childress: Australian Amicus Brief \(https://drcachildress.org/wp-content/uploads/2019/12/Australian-Amicus-Submission-Childress-2019-2.pdf\)](https://drcachildress.org/wp-content/uploads/2019/12/Australian-Amicus-Submission-Childress-2019-2.pdf)

Serbia Powerpoint Handout: Day 1

This is the Handout for Day 1 of my presentation in Serbia for the Center for Shared Parenting Conference held at the University of Novi Sad, Serbia on April 27 & 28, 2023.



 [Serbia Part 1 – Return of Clinical Psychology to Court-Involved Custody Conflict \(https://drcachildress-consulting.com/wp-content/uploads/2023/05/Novi-Sad-Part-1-Return-of-Clinical-final.pdf\)](https://drcachildress-consulting.com/wp-content/uploads/2023/05/Novi-Sad-Part-1-Return-of-Clinical-final.pdf)

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